Fractal Governance Architecture

A Constitution All the Way Down

Constitutional Self-Similarity as an Architectural Invariant for Governed State Transition

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Abstract

Most governance systems exhibit scale discontinuities. Actions are governed by one mechanism, policies by another, institutions by a third, and constitutional amendment by informal or exceptional processes. As a result, governance frequently terminates in opaque authority, ad hoc exception, or institutional memory.

This paper introduces **Fractal Governance Architecture (FGA)**, a governance paradigm in which a single constitutional transition schema is applied recursively across scales. Under FGA, commits, namespace allocations, policy updates, organizational actions, protocol amendments, and constitutional revisions are all represented as governed state transitions evaluated under an admissibility relation.

The central claim is not that governance becomes infinitely recursive, but that governance need not terminate in an unaccountable exception layer. Instead, protocol evolution, institutional evolution, and operational execution may all be governed through homologous constitutional structures.

A formal admissibility predicate is introduced, together with a protocol–kernel separation, receipt semantics, amendment mechanics, and a constitutional transition algebra. The resulting architecture provides a substrate-neutral framework for constructing systems whose governance remains structurally self-similar across scales while preserving jurisdictional and institutional specialization. **Structural self-similarity applies to transition form rather than to the governance system as a whole**: commits, namespace allocations, protocol amendments, and constitutional revisions differ in policy content, authority domain, and jurisdiction, yet all instantiate the same transition form. This invariance of form rather than content is the paper's central conceptual move. **FGA is a system in which the same admissibility grammar governs transitions across scales, while jurisdiction determines the applicable authority and interpretation regime.**

1. Introduction

Governance is usually implemented as a hierarchy.

Actions are governed by policies.

Policies are governed by institutions.

Institutions are governed by exceptional procedures.

Exceptional procedures are frequently governed by nothing beyond informal convention or ad hoc procedure.

This produces a scale discontinuity.

The form of governance changes as one ascends the hierarchy.

The consequence is a familiar governance failure:

A system appears governed until one asks:

> Who governs the governors?

At this point governance often terminates in a privileged exception layer.

An administrator.

A committee.

A corporation.

A root key.

A sovereign authority.

Fractal Governance Architecture proposes an alternative.

Rather than changing governance form across scales, a system may preserve a common constitutional transition structure while permitting different jurisdictions, authorities, and policies at each level.

The architectural invariant is not policy uniformity.

The invariant is constitutional form.

FGA governs admissible transitions, not merely permissions; it therefore generalizes access control rather than duplicating it. In this framing, governance is treated as infrastructure rather than as application-specific logic.

2. The Scale Discontinuity Problem

Let:

$$A$$

denote actions,

$$P$$

denote policies,

and

$$I$$

denote institutions.

Conventional governance may be represented:

$$A \to P \to I$$

where each layer operates under a different governance grammar.

The resulting structure is heterogeneous.

Different evaluation rules.

Different authority models.

Different amendment procedures.

Different evidentiary standards.

Consequently:

$$G_A \neq G_P \neq G_I$$

where:

$$G_x$$

denotes the governance structure governing object class:

$$x$$

The governance form itself changes with scale.

FGA seeks to preserve governance form while permitting policy specialization.

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3. Constitutional Transition Schema

The fundamental object of FGA is the governed transition.

Let:

$$\mathcal{P}$$

be the domain of proposals,

$$\mathcal{J}$$

the domain of jurisdiction descriptors,

$$\mathcal{E}$$

the domain of evaluators,

$$\mathcal{V}$$

the domain of evaluation results,

$$\Delta$$

the domain of binding decisions,

$$\mathcal{R}$$

the domain of receipts,

and

$$\mathcal{A}$$

the domain of amendment-eligibility metadata.

A governed transition is:

$$T \in \mathcal{P} \times \mathcal{J} \times \mathcal{E} \times \mathcal{V} \times \Delta \times \mathcal{R} \times \mathcal{A}$$

and is represented as:

$$T = (\rho, J, E, v, \delta, R, \alpha)$$

where each component ranges over its corresponding typed domain. Here $v \in \mathcal{V}$ is the component-level evaluation result, distinct from the domain $\mathcal{V}$ itself. The tuple is intentionally typed so that the transition object and its evaluation-result domain remain visually and semantically distinct.

The transition schema is scale invariant.

A commit.

A namespace claim.

A protocol amendment.

An organizational charter revision.

All instantiate the same transition form.

The policy content may differ.

The transition grammar remains constant.

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4. Admissibility

FGA is built around a constitutional admissibility predicate.

Let:

$$x$$

denote a proposed transition.

Let:

$$c$$

denote a constitution.

Then:

$$\mathsf{Adm}(x, c) \in \top, \bot$$

determines whether:

$$x$$

is admissible under:

$$c$$

A transition is admitted iff:

$$\mathsf{Adm}(x, c) = \top$$

A transition is refused iff:

$$\mathsf{Adm}(x, c) = \bot$$

The admissibility predicate is the central constitutional primitive.

All governed objects are evaluated through this relation.

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5. Jurisdiction

Evaluation never occurs in isolation.

Every transition is evaluated within a jurisdiction.

A jurisdiction:

$$J$$

defines:

- applicable authority roots,
- applicable policy regime,
- namespace scope,
- semantic interpretation regime,
- amendment rules.

Admissibility is therefore:

$$\mathsf{Adm}(x, c, J)$$

rather than merely:

$$\mathsf{Adm}(x, c)$$

The same proposal may be admissible under one jurisdiction and inadmissible under another.

Jurisdictions may additionally be **phase-scoped** or **epoch-scoped**: a transition belongs not merely to a timestamped period but to a declared semantic regime under which a specific admissibility relation is in force. Phase or epoch scoping makes the boundaries between successive constitutional regimes explicit rather than implicit, so that a transition evaluated under regime ϕ_k is constitutionally distinguishable from a transition evaluated under regime ϕ_{k+1}, even if the wall-clock interval between them is short. This strengthens the jurisdiction-relative root construction (Section 12) by giving the root a declared semantic envelope rather than only a temporal one.

Jurisdiction is therefore a constitutional parameter rather than metadata.

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6. Receipts

A receipt is not merely evidence.

A receipt is a constitutional commitment and provenance artifact.

Let:

$$R$$

be a receipt.

A valid receipt must satisfy:

1. Integrity
2. Provenance
3. Reproducibility
4. Independent verifiability

A receipt minimally records:

- proposal identity,
- jurisdiction identity,
- evaluator identity,
- decision,
- constitutional witnesses.

A receipt is tamper-evident when its content is cryptographically bound to ρ, J, δ, E, and the constitutional witnesses, such that independent parties can verify both origin and decision lineage. The receipt is bound to a specific evaluation event, not merely to the proposal and jurisdiction. Implementations may choose specific cryptographic primitives (signature schemes, hash chains, Merkle commitments), but the architectural requirement is that tamper-evidence is structural rather than incidental.

Receipts enable third parties to verify that a transition was evaluated under a specific constitutional context and resulted in a specific binding decision.

In cryptographic implementations, an FGA receipt may be realized as a structured commitment over independent governance questions: state, admissibility, meaning, and optional locality — for instance, separate hash commitments H_s (state), H_c (admissibility / constitutional context), H_m (meaning), and optionally H_j (jurisdictional locality). This decomposition preserves the FGA claim that a transition can be structurally valid at one layer while failing at another, rather than collapsing governance into a single signature, timestamp, or content hash. The framework does not prescribe a specific commitment construction; it requires only that the constructed receipt be tamper-evident with respect to each of the independent governance questions it certifies.

Without receipt verification, governance collapses into unverifiable assertion.

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7. Kernel Semantics

The kernel is the executable realization of the protocol.

The kernel consumes (ρ, c, J) and returns (v, δ, R) with $v \in \mathcal{V}$.

$$K : (\rho, c, J) \to (v, \delta, R)$$

$$K(\rho, c, J) = (v, \delta, R)$$

$$\delta = \text{ADMIT} \iff \mathsf{Adm}(\rho, c, J) = \top$$

$$\delta = \text{REFUSE} \iff \mathsf{Adm}(\rho, c, J) = \bot$$

$$\delta \in \{\text{ADMIT}, \text{REFUSE}\} \Rightarrow R \neq \varnothing$$

Receipt emission is the architectural commitment to auditability: every binding decision produces a tamper-evident artifact, regardless of whether the decision admits or refuses the proposed transition.

Minimum versus full FGA realization. A *minimum* FGA realization emits receipts only on ADMIT — this is sufficient to verify that any admitted transition was constitutionally founded, but leaves refusals unverifiable. A *full* FGA realization emits receipts on both ADMIT and REFUSE, so that refusals are themselves independently verifiable artifacts. The full realization strengthens auditability substantially: it eliminates the failure mode in which a kernel

silently drops transitions without leaving evidence, and it permits third-party verification that a refusal occurred for the stated constitutional reasons rather than for unstated ones. Production realizations should emit receipts on both decisions; the admit-only minimum is retained as the architectural floor below which auditability cannot drop. A full FGA realization is preferred because refusals are themselves part of the constitutional record.

The kernel therefore implements constitutional evaluation.

The protocol defines constitutional semantics.

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8. Evaluation versus Decision

Evaluation and decision are distinct.

Evaluation determines:

$$v \in \mathcal{V}$$

the constitutional facts.

Decision determines:

$$\delta$$

the binding outcome.

Evaluation answers:

> What is true?

Decision answers:

> What shall occur?

The distinction prevents constitutional analysis from being conflated with execution.

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9. Constitutional Self-Similarity

Structural self-similarity applies to transition form rather than to the governance system as a whole.

A commit.

A namespace allocation.

A protocol amendment.

A constitutional revision.

May differ in:

- policy content,
- authority domain,
- evaluation criteria,
- jurisdiction.

Yet all instantiate:

$$T$$

The invariant is transition form.

Not policy content.

Not institutional purpose.

Not authority scope.

Fractal self-similarity is therefore an architectural invariant.

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10. Namespace Governance

Namespaces are governed constitutional resources.

Namespace governance distinguishes:

Claim

Proposal to acquire a namespace.

Allocation

Admission of a claim into namespace ownership.

Delegation

Transfer of authority without changing ownership.

Revocation

Removal of authority or ownership according to jurisdictional policy.

Invalidation

Nullification of a claim or receipt when the constitutional predicate fails. Invalidation changes the constitutional status of the artifact retroactively for auditing and prospectively for future evaluation, but it does not erase the historical record. The jurisdiction must specify the remediation policy — whether dependent transitions are themselves invalidated, marked for review, or allowed to stand on independent constitutional grounds.

These actions are constitutionally distinct.

They must not be collapsed.

Namespace Conflict

Collisions may occur when:

$$N_1 = N_2$$

under canonicalization.

Resolution is determined by jurisdictional policy.

Possible outcomes:

- refusal,
- supersession,
- expiration,
- adjudication.

Receipt conflict does not imply namespace conflict.

Jurisdiction determines admissibility.

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11. Constitutional Amendment

Amendment is a first-class governed transition. The constitution must declare which amendment model it uses at inception.

Let:

$$c_n$$

be constitution version:

$$n$$

An amendment is:

$$c_n \to c_{n+1}$$

subject to:

$$\mathsf{Adm}(c_n \to c_{n+1}, c_n, J)$$

Constitutions therefore evolve through governed transitions.

Design fork: self-amendment versus higher-root amendment. A constitution c_n may be amended under one of two distinct architectural choices.

1. **Self-amendment.** The constitution c_n contains within itself the admissibility conditions for transitions to c_{n+1}. Amendment eligibility is governed by the constitution being amended. This places the amendment authority inside the same constitutional grammar that governs ordinary transitions.
2. **Higher-root amendment.** Amendment of c_n is governed by a higher-root constitution $c_n^{\uparrow}$ whose authority is separately established. Amendment eligibility is therefore drawn from outside c_n.

The two choices have different reliability and authority properties. Self-amendment closes the system but raises the question of whether c_n can constitutionally constrain its own succession (a Hartian / Kelsenian question with no neutral answer). Higher-root amendment opens the system and shifts the recursion-termination question to the higher root. The location of amendment authority determines the system's recursion boundary.

Governance need not terminate in an unaccountable amendment layer.

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12. Recursion Boundary

FGA does not require infinite regress.

The recursion terminates at constitutional roots defined by a jurisdiction.

Examples include:

- founding constitutions,
- authority roots,
- genesis receipts,
- jurisdictional origin objects.

These roots remain explicit.

The objective is not infinite recursion.

The objective is elimination of hidden recursion.

Every governance chain terminates in an explicit, jurisdiction-relative constitutional root.

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13. Composability

Distinct constitutional domains may interoperate.

Let:

$$c_A$$

and

$$c_B$$

be constitutions.

Interoperation does not require:

$$c_A = c_B$$

Instead:

$$\Phi : c_A \leftrightarrow c_B$$

defines constitutional translation.

Cross-domain interoperability requires an *explicit bridge or morphism*, not silent reinterpretation. A morphism between domains must either preserve admissibility and meaning across the crossing, or emit an explicit failure witness when preservation fails; similarly, continuity across distinct constitutional phases or epochs must be explicit and signed rather than implicit. Silent reinterpretation — in which a transition admissible under one constitution is treated as admissible under another without an explicit governed bridge — violates the framework's composability discipline and is structurally distinguishable from valid translation.

Composability therefore preserves constitutional autonomy while enabling cooperation.

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14. Revocability

Receipts are immutable.

Governance is not.

Errors are corrected through new governed transitions.

A revocation is represented:

$$R_n \rightarrow R_{n+1}$$

rather than modification of:

$$R_n$$

This preserves constitutional history while permitting correction.

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15. Threat Model

FGA explicitly addresses:

Malicious Evaluator

Evaluator deviates from constitutional rules.

Forged Receipt

Receipt created without valid constitutional process.

Jurisdiction Spoofing

Transition evaluated under an incorrect jurisdiction.

Constitution Capture

An amendment path is manipulated such that future amendments become effectively uncontestable, concentrating authority while preserving procedural appearance.

Authority Laundering

A governance artifact, approval chain, or receipt is treated as proof of legitimacy despite lacking valid standing, jurisdiction, or constitutional admissibility.

Receipts and admissibility witnesses exist to mitigate these threats.

15.5 Failure Semantics

The architecture's behavior under boundary conditions must be specified, since governance systems are most likely to fail at the seams.

Ambiguous evaluation. When evaluation yields a result v that is neither cleanly admitting nor cleanly refusing — e.g., partial constitutional witnesses, contested constitutional facts, or non-determinism in Adm — the kernel must refuse rather than admit. The architectural commitment is *fail-closed*: $\delta = \text{REFUSE}$ whenever $\mathsf{Adm}(\rho, c, J) \neq \top$. Receipts of REFUSE record the constitutional facts that produced the refusal, preserving auditability of negative outcomes.

Missing jurisdiction. A transition submitted without a resolvable jurisdiction J cannot be evaluated under any constitutional context. The kernel rejects such transitions at the protocol layer, prior to admissibility evaluation, and emits a structural-error receipt distinguishable from a constitutional REFUSE. Missing jurisdiction is therefore a *protocol* failure, not a *constitutional* failure.

Conflicting receipts. When two receipts assert incompatible decisions over identical (ρ, c, J) tuples, the conflict is resolved at the jurisdiction's resolution policy — typically by treating both as suspect pending re-evaluation under the original c at the time of the conflicting evaluations. Conflicting receipts do not silently reconcile; they generate a constitutional event that itself enters the transition system.

Competing roots. When two constitutional roots claim authority over the same transition, no admissibility relation can adjudicate the conflict from within either root alone (a recursion-termination consequence of Section 12). The jurisdictional layer must designate which root governs which class of transitions; if the designation is itself contested, the system enters a constitutional crisis distinguishable from ordinary REFUSE. **A constitutional crisis is a failure of root disambiguation, not merely a negative decision.** A constitutional crisis is therefore distinct from an ordinary REFUSE outcome, which occurs within a known root. Such crises are observable as receipts from competing roots covering the same proposal, and are resolved through whatever extra-constitutional procedure the implementers have agreed upon (typically deferring to the earlier-established root, or to an external arbitration mechanism whose authority is independently grounded).

The architectural commitment is that each failure mode is *visible* through the receipt and evaluation record, even when its resolution requires extra-constitutional intervention.

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16. Example Trace

Minimal Transition Trace

Proposal:

$$\rho = \texttt{merge_request}$$

Jurisdiction check:

$$J = \texttt{repository_constitution}$$

Evaluation:

- required approvals verified,
- required tests verified,
- required authority verified.

Decision:

$$\delta = \texttt{ADMIT}$$

Receipt:

$$R = \texttt{receipt_421}$$

Result:

The merge is permitted only after admissibility is established.

Amendment Path

The repository constitution may itself propose:

$$c_n \to c_{n+1}$$

which undergoes the same jurisdiction check, evaluation, decision, and receipt process before becoming active.

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17. Governance as Infrastructure

The claim that governance becomes infrastructure is a systems hypothesis.

The hypothesis states:

> As constitutional transition semantics become protocolized, governance may become a reusable constitutional service layer consumed by applications rather than application-specific logic embedded within them.

This is a design claim.

Not a theorem.

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18. Comparison

The table below is offered as a **heuristic positioning device**, not a quantified evaluation. The dimensions are illustrative rather than rigorously operationalized; the labels (Yes / Partial / Limited / Rare / No) reflect a qualitative reading of each system's typical configuration rather than a measurement against precise thresholds. The purpose is to clarify how FGA's compositional novelty differs from each adjacent system, not to rank systems against one another.

The dimensions compared below are:

- Kernelization: existence of a dedicated governance evaluator,
- Receipts: production of independently verifiable governance artifacts,
- Recursive Governance: governance applied to governance-related transitions,
- Constitutional Self-Governance: protocol or constitutional evolution governed by the same constitutional grammar.

- **System:** Formal Law
  Kernelized: Partial
  Receipts: Partial
  Recursive Governance: Partial
  Constitutional Self-Governance: Limited

- **System:** Organizational Policy
  Kernelized: Partial
  Receipts: Limited
  Recursive Governance: Limited
  Constitutional Self-Governance: Rare

- **System:** Platform Governance
  Kernelized: Yes
  Receipts: Partial
  Recursive Governance: Rare
  Constitutional Self-Governance: Rare

- **System:** Git
  Kernelized: Yes
  Receipts: Yes
  Recursive Governance: Partial
  Constitutional Self-Governance: No

- **System:** Kubernetes
  Kernelized: Yes
  Receipts: Partial
  Recursive Governance: Partial
  Constitutional Self-Governance: No
- **System:** Blockchain Governance Systems
  Kernelized: Yes
  Receipts: Yes
  Recursive Governance: Partial
  Constitutional Self-Governance: Partial
- **System:** FGA
  Kernelized: Yes
  Receipts: Yes
  Recursive Governance: Yes
  Constitutional Self-Governance: Yes

The novelty is not governance, recursion, receipts, or kernelization individually.

The novelty is their composition into a recursively admissible constitutional grammar.

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19. Fractal Hypothesis

The Fractal Hypothesis states:

> Governance systems become more coherent when constitutional transition form remains invariant across scales.

The hypothesis does not require identical policies.

It requires structural continuity.

Governance failures frequently emerge at scale discontinuities.

Fractal architectures seek to reduce such discontinuities.

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20. Conclusion

Most governance architectures change form as they scale.

Actions are governed one way.

Institutions another.

Amendments another.

Fractal Governance Architecture proposes a common constitutional transition schema across scales.

The resulting architecture preserves self-similarity without requiring policy uniformity.

Commits, namespace allocations, organizational actions, protocol amendments, and constitutional revisions become instances of the same admissibility grammar.

Governance need not terminate in an unaccountable exception layer.

Instead, constitutional evolution itself may become a governed transition.

The result is a governance architecture whose invariant is not authority, policy, or institution.

Its invariant is constitutional form.

Appendix A: Minimal Constitutional Transition

$$T = (\rho, J, E, v, \delta, R, \alpha)$$

Appendix B: Constitutional Root Objects

Examples:

- Genesis Constitution
- Founding Charter
- Authority Root
- Namespace Root
- Jurisdiction Root

Every governance chain terminates in an explicit, jurisdiction-relative constitutional root.

Appendix C: Fractal Governance Axioms

Axiom 1

Every governed transition possesses a jurisdiction.

Axiom 2

Every admissible transition is receiptable.

Axiom 3

Every receipt is independently verifiable.

Axiom 4

Constitutions may themselves be governed objects.

Axiom 5

Constitutional self-similarity is preserved at the level of transition form.

Corpus-Wide Reference Positioning

This paper argues that most governance systems exhibit scale discontinuities. Its nearest external comparison fields are governance, software, crypto. The sources in [E1], [E2], [E3], [E4], [E5], [E6], [E7] are cited as predecessor literature, adjacent standards, or counterpressure - not as evidence that they caused the Ableman framework or that they validate its novel claims. The comparison isolates where established work already supplies provenance, formal assurance, institutional constraint, empirical method, or engineering practice, and where this paper adds a distinct claim about admissibility, authority, semantic custody, or governed realization.

Within the Ableman corpus, the highest-priority current cross-links are [A1], [A2], [A3], [A4], [A5], [A6], [A7]. These are links among separately custodied works, not silent identity mergers. Their role is to expose mutual dependencies, terminology collisions, and places where a reader should traverse the corpus before treating this paper as self-sufficient.

Reference-pass counterevidence and limit search

The pass applied the following pressure tests: A written constitution can legitimate domination as easily as constrain it unless amendment, participation, enforcement, and appeal remain effective in practice. Modularity, secure-development practice, and reproducibility reduce classes of failure but do not guarantee architectural coherence or user sovereignty. A valid hash, signature, or inclusion proof establishes a bounded cryptographic relation, not meaning, authority, safety, or jurisdiction by itself. These limits are not generic disclaimers: they identify the assumptions that a later empirical, formal, or implementation review must try to break.

Reference-pass influence and novelty boundary

No newly added external source is asserted to be a documented authorial influence unless the predecessor source already said so. `Predecessor` means earlier relevant work;

`adjacent` means a useful comparison; `standard` means an interoperability or assurance baseline; and `counterevidence` marks work that narrows or pressures a claim. Novelty therefore remains a reviewable, claim-level question rather than an inference from a low similarity score or an absent citation.

References

External scholarship, standards, and prior art

[**E1**] Elinor Ostrom. *Governing the Commons: The Evolution of Institutions for Collective Action.* Cambridge University Press, 1990. DOI: 10.1017/CBO9780511807763. https://doi.org/10.1017/CBO9780511807763 **Relationship:** Predecessor institutional account of rule-governed collective action and polycentric governance.

[**E2**] Wil Waluchow and Dimitrios Kyritsis. "Constitutionalism." *Stanford Encyclopedia of Philosophy*, substantive revision 2023. https://plato.stanford.edu/entries/constitutionalism/ **Relationship:** Adjacent legal-philosophical account of limited authority; included to expose differences between political and computational constitutionalism.

[**E3**] Lawrence Lessig. *Code: Version 2.0.* Basic Books, 2006. https://codev2.cc/ **Relationship:** Predecessor argument that software architecture regulates behavior; the paper's contribution may be to make such regulation inspectable and revisable.

[**E4**] OECD. *Recommendation of the Council on Artificial Intelligence.* OECD/LEGAL/0449, adopted 2019 and updated 2024. legalinstruments.oecd.org source **Relationship:** Adjacent policy standard for accountability, traceability, transparency, safety, and human-centered values.

[**E5**] David L. Parnas. "On the Criteria To Be Used in Decomposing Systems into Modules." *Communications of the ACM* 15(12), 1972, pp. 1053-1058. DOI: 10.1145/361598.361623. https://doi.org/10.1145/361598.361623 **Relationship:** Foundational modularity treatment used to compare information hiding with explicit semantic and governance interfaces.

[**E6**] Ward Cunningham. "The WyCash Portfolio Management System." *OOPSLA '92 Experience Report*, 1992. DOI: 10.1145/157709.157715. https://doi.org/10.1145/157709.157715 **Relationship:** Original technical-debt metaphor used to distinguish implementation debt from semantic debt.

[**E7**] Karen Scarfone, Murugiah Souppaya, and Donna Dodson. *Secure Software Development Framework (SSDF) Version 1.1.* NIST SP 800-218, 2022. DOI: 10.6028/NIST.SP.800-218. https://doi.org/10.6028/NIST.SP.800-218 **Relationship:** Adjacent secure-development framework for preparation, protection, production, and vulnerability response.

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